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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 09.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.22381 of 2026

1.Balamurugan

2.Uma Maheswari

3.Latha

... Petitioners/
Accused

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Villur Police Station,
Madurai District.
(Crime No.70 of 2026)

... Respondent/
Complainant

For Petitioners: Mr.S.Pradeep,
Advocate

For Respondent : Mr.T.Lenin Kumar,
Additional Public Prosecutor

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.70 of 2026 on the file of the Respondent Police.

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ORDER : The Court made the following order :-

The petitioners / accused, who were arrested and remanded to judicial custody on 25.08.2026 for the offences punishable under Sections 103(1), 191(2), 191(3), 238, 296(b), 3(5), 351(2) and 61(2) BNS, in Crime No.70 of 2026, on the file of the respondent police, seek bail.

2. The case of the prosecution is that earlier, the first accused had assaulted the defacto complainant's cousin, in respect of which a case was registered. Since the defacto complainant's brother Murugan had advised his cousin not to compromise in the said case, the accused 1 and 2 threatened the defacto complainant and his brother, Murugan. On 19.08.2026, at about 06.50 a.m., one Muralitharan informed the defacto complainant that his brother Murugan, had been murdered. When he went to the place of occurrence, some of his relatives informed him that on 18.08.2026, at about 09.15 p.m., accused 1 and 2 had quarrelled with his brother Murugan. Hence, an FIR was registered in Crime No.70 of 2026 on

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19.08.2026 against the accused 1 and 2. Subsequently, based on the confession statements allegedly given by the said accused, the present petitioners were also implicated in the case.

3. The learned counsel appearing for the petitioners would submit that the petitioners are innocent and they have not committed any offence as alleged by the prosecution. He would further submit that the petitioners are in judicial custody from 25.08.2026.

4. The learned Additional Public Prosecutor appearing for the respondent police would submit that there are totally five accused in this case and the petitioners are arrayed as accused 3 to 5, that the petitioners 1 and 2 are the parents of the first accused and the third petitioner is the mother of the second accused, that the specific overt act attributed to the first petitioner is that he instigated the accused 1 and 2, whereas, the petitioners 2 and 3 allegedly concealed the evidence,

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that the accused 1 and 2 are still in custody and that the investigation is pending. He would further submit that the petitioners are not having any previous cases.

5. Considering the nature of the charges levelled against the petitioners and also the facts that the petitioners are in judicial custody from 25.08.2026 and that the petitioners are not having any bad antecedents, this Court is inclined to grant bail to the petitioners subject to the following conditions:

6. Accordingly, the petitioners are ordered to be released on bail on their executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** each with two sureties each for a like sum to the satisfaction of the learned Judicial Magistrate, Peraiyur, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of

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their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioners shall stay at Viluppuram and report before the Inspector of Police, Viluppuram Town Police Station, Viluppuram, daily at 10.30 a.m., for a period of thirty (30) days and thereafter, before the respondent police for a period of fifteen (15) days and thereafter as and when required for interrogation;

(iii)the petitioners shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioners shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions have been imposed and the petitioners are released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
09.10.2026

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TO

1. The Judicial Magistrate,
   Peraiyur.

2. Do through
   The Chief Judicial Magistrate,
   Madurai.

3. The Superintendent,
   Central Prison,
   Madurai.

4. The Superintendent,
   Central Prison (Women),
   Madurai.

5. The Inspector of Police,
   Villur Police Station,
   Madurai District.

6. The Inspector of Police,
   Viluppuram Town Police Station,
   Viluppuram.

7. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

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K.MURALI SHANKAR,J

CSM

ORDER
IN
CRL OP(MD) No.22381 of 2026

Date : 09.10.2026